

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 607

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO PRIVACY AND SAFETY IN RESTROOMS AND CHANGING FACILITIES; AMENDING TITLE 67, IDAHO CODE, BY THE ADDITION OF A NEW CHAPTER 48, TITLE 67, IDAHO CODE, TO PROVIDE LEGISLATIVE FINDINGS, TO DEFINE TERMS, TO ESTABLISH PROVISIONS REGARDING GOVERNMENT BUILDING RESTROOMS AND CHANGING FACILITIES, TO PROVIDE FOR EXEMPTIONS, TO PROVIDE FOR REASONABLE ACCOMMODATION, TO ESTABLISH A CIVIL CAUSE OF ACTION, TO PROVIDE FOR PREEMPTION, AND TO ESTABLISH CERTAIN LIMITATIONS; AMENDING TITLE 6, IDAHO CODE, BY THE ADDITION OF A NEW CHAPTER 40, TITLE 6, IDAHO CODE, TO PROVIDE LEGISLATIVE FINDINGS, TO DEFINE TERMS, TO ESTABLISH CERTAIN DUTIES OF PLACES OF PUBLIC ACCOMMODATION, TO PROVIDE FOR EXEMPTIONS, TO PROVIDE FOR REASONABLE ACCOMMODATION, TO PROVIDE FOR CERTAIN LIABILITY FOR PLACES OF PUBLIC ACCOMMODATION, TO PROVIDE FOR PREEMPTION, AND TO ESTABLISH CERTAIN LIMITATIONS; PROVIDING SEVERABILITY; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Title 67, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW CHAPTER, to be known and designated as Chapter 48, Title 67, Idaho Code, and to read as follows:

CHAPTER 48

PROTECTING PRIVACY AND SAFETY IN GOVERNMENT BUILDINGS

67-4801. LEGISLATIVE FINDINGS. The legislature finds and declares that:

(1) There are real, inherent, and enduring physical differences between men and women.

(2) Every individual retains a natural right to privacy and safety, especially in restrooms and changing facilities where such individual might be in a partial or full state of undress in the presence of others.

(3) Requiring individuals to share restrooms and changing facilities with members of the other sex infringes on their interest in privacy and generates potential embarrassment, shame, and psychological injury to those individuals.

(4) Requiring individuals to share restrooms and changing facilities with members of the other sex creates real privacy and safety concerns by increasing the likelihood of sexual assault, molestation, rape, voyeurism, and exhibitionism.

(5) There are numerous well-documented examples illustrating that there are real privacy and safety implications when members of one sex are permitted to access restrooms and changing facilities designated for use by the other sex.

(6) The legislature has the clear authority, as acknowledged by the ninth and tenth amendments to the constitution of the United States, to enact legislation to safeguard the natural rights of privacy and safety.

(7) A policy maintaining sex-separated restrooms and changing facilities in government buildings is substantially related to the important governmental interest in protecting the privacy, safety, and dignity of individuals using such spaces.

67-4802. DEFINITIONS. For the purposes of this chapter:

(1) "Changing facility" means a facility in which an individual may be in a state of undress in the presence of others, including a locker room, changing room, or shower room.

(2) "Female" has the same meaning as defined in section 73-114, Idaho Code.

(3) "Government building" means any building or facility owned or leased by a government entity and shall include any building or facility that a government entity leases from the property owner. If a government entity leases only a portion of a building, then only the portion of the building leased by the government entity shall be treated as a government building.

(4) "Government entity" means the state or any city, county, municipality, or other political subdivision or administrative unit of the state.

(5) "Male" has the same meaning as defined in section 73-114, Idaho Code.

(6) "Sex" has the same meaning as defined in section 73-114, Idaho Code.

67-4803. GOVERNMENT BUILDING RESTROOMS AND CHANGING FACILITIES. (1) Every government building restroom or changing facility accessible by multiple individuals at the same time shall be:

(a) Designated for use by male individuals only or female individuals only; and

(b) Used only by individuals of the sex corresponding to the designation provided for in paragraph (a) of this subsection.

(2) No individual shall enter a multi-occupancy restroom or changing facility within a government building that is designated for one (1) sex unless such individual is a member of that sex.

(3) The government entity with authority over the government building shall provide its users with privacy from members of the other sex in every restroom and changing facility.

67-4804. EXEMPTIONS. This chapter shall not apply:

(1) To single-occupancy restrooms and changing facilities;

(2) To single-occupancy restrooms and changing facilities that are conspicuously designated for family use;

(3) To restrooms and changing facilities that have been temporarily designated for use by the other sex;

(4) To an individual who uses a restroom or changing facility designated for the other sex if such restroom or changing facility is the only restroom or changing facility reasonably available at the time of the individual's use of the facility, provided that such individual ensures that no per-

son of the opposite sex is using the restroom or changing facility prior to entering the facility;

(5) To an individual employed to clean, maintain, or inspect a restroom or changing facility while such individual is actively engaged in the activity for which the individual has been employed, provided that such individual ensures no person of the opposite sex is using the restroom or changing facility prior to entering the facility;

(6) To an individual who enters a restroom or changing facility to render medical assistance;

(7) To a law enforcement official engaged in law enforcement activities or supervising any arrestee, detainee, or inmate in a custodial setting;

(8) To an individual who enters a restroom or changing facility to accompany and render assistance to a person who is in need of assistance if such person rendering assistance is:

(a) A family member or a legal guardian of the person needing assistance; or

(b) The designee of the person in need of assistance and the designee is not a member of the designated sex for the single-sex restroom or changing facility.

(9) To a minor child who is in need of assistance and, for the purposes of receiving that assistance, is accompanied by a family member, a legal guardian, or the individual's designee who is a member of the designated sex for the single-sex restroom or changing facility;

(10) To coaching staff and personnel during athletic events, provided that such individuals take reasonable steps to ensure that no person is in a state of undress prior to entering the facility; or

(11) During an ongoing natural disaster or emergency, or when necessary to prevent a serious threat to good order or public safety.

67-4805. REASONABLE ACCOMMODATION. (1) A government entity with authority over any government building may provide a reasonable accommodation to any individual who for any reason is unwilling or unable to use a multi-occupancy restroom or changing facility designated for the individual's sex in a government building.

(2) A reasonable accommodation shall not include access to a restroom or changing facility that is designated for use by members of the other sex while individuals of the other sex are present or could be present.

67-4806. CIVIL CAUSE OF ACTION. (1) Any individual who, while accessing or using a government building multi-occupancy restroom or changing facility designated for use by the individual's sex, encounters a member of the other sex shall have a private cause of action against the government entity with authority over the government building if:

(a) The government entity gave the member of the other sex permission to use the restroom or changing facility designated for use by the individual's sex; or

(b) The government entity failed to take reasonable steps to prohibit the member of the other sex from accessing the restroom or changing facility designated for use by the individual's sex.

1 (2) Any civil action arising under this chapter must be commenced
2 within two (2) years after the cause of action has occurred.

3 (3) Any plaintiff who prevails in an action brought under this chap-
4 ter may recover from the defendant government entity ten thousand dollars
5 (\$10,000) for each instance that the plaintiff encountered a member of the
6 other sex while accessing or using a government building restroom or chang-
7 ing facility designated for use by the plaintiff's sex. The plaintiff may
8 also recover monetary damages from the defendant government entity for all
9 psychological, emotional, and physical harm suffered.

10 (4) Any plaintiff who prevails in an action brought under this chapter
11 is entitled to recover reasonable attorney's fees and costs from the defen-
12 dant government entity.

13 (5) Nothing in this chapter limits other remedies at law or equity
14 available to the plaintiff against the government entity.

15 67-4807. PREEMPTION. This chapter preempts any law, regulation, pol-
16 icy, or decree enacted or adopted by any government entity within the state
17 that purports to permit or require government entities to allow individuals
18 to use restrooms and changing facilities in government buildings designated
19 for use by the other sex.

20 67-4808. LIMITATIONS. (1) The provisions of this chapter shall not ap-
21 ply to any covered entity as that term is defined in section 67-9801, Idaho
22 Code.

23 (2) The provisions of this chapter shall not apply to any public school
24 as that term is defined in section 33-6702, Idaho Code.

25 (3) Nothing in this chapter shall be construed to require any govern-
26 ment entity to unlawfully violate the terms of an existing lease agreement.

27 SECTION 2. That Title 6, Idaho Code, be, and the same is hereby amended
28 by the addition thereto of a NEW CHAPTER, to be known and designated as Chap-
29 ter 40, Title 6, Idaho Code, and to read as follows:

30 CHAPTER 40

31 LIABILITY FOR PLACES OF PUBLIC ACCOMMODATION

32 6-4001. LEGISLATIVE FINDINGS. The legislature finds and declares
33 that:

34 (1) Land possessors have a duty of care at common law to maintain their
35 premises in such a way as to reasonably prevent harm to those entering their
36 property.

37 (2) Idaho "adheres to the traditional common-law jurisprudence that
38 developed around premises liability." *Oswald v. Costco Wholesale Corpora-*
39 *tion*, 167 Idaho 540, 551 (2020).

40 (3) A land possessor owes an "affirmative duty" to protect members of
41 the public he has invited when he "open[ed] his property to the public for
42 business," which reflects the "age-old principle" that an invitee is "enti-
43 tled to visit and assume that the premises have been made safe for his visit."
44 *Id.* at 552.

1 (4) Land possessors "can be liable for failing to protect invitees
2 against the foreseeable negligence or criminal acts of third parties." Id.
3 at 553.

4 (5) Allowing individuals to share restrooms or changing facilities
5 with members of the other sex generates potential embarrassment, shame, and
6 psychological injury to invitees, as well as increasing the likelihood of
7 sexual assault, molestation, rape, voyeurism, and exhibitionism.

8 (6) Land possessors owe a duty to protect the privacy and safety of in-
9 vitees from members of the other sex in restrooms and changing facilities
10 provided to their customers or the public.

11 6-4002. DEFINITIONS. For the purposes of this chapter:

12 (1) "Changing facility" means a facility in which an individual may be
13 in a state of undress in the presence of others, including a locker room,
14 changing room, or shower room.

15 (2) "Place of public accommodation" means a business, accommodation,
16 refreshment, entertainment, recreation, or transportation facility of any
17 kind, whether licensed or not, whose goods, services, facilities, privi-
18 leges, advantages, or accommodations are extended, offered, sold, or other-
19 wise made available to the public.

20 (3) "Sex" has the same meaning as defined in section 73-114, Idaho Code.

21 6-4003. DUTIES OF PLACES OF PUBLIC ACCOMMODATION. Every place of pub-
22 lic accommodation shall have a duty to take reasonable steps to ensure that
23 the privacy and safety of an individual is protected from members of the
24 other sex in every restroom or changing facility maintained by the place of
25 public accommodation.

26 6-4004. EXEMPTIONS. It shall not be a breach of the duty provided in
27 section 6-4003, Idaho Code, if the place of public accommodation:

28 (1) Provides single-occupancy restrooms or changing facilities;

29 (2) Provides single-occupancy restrooms or changing facilities that
30 are conspicuously designated for family use;

31 (3) Temporarily designates a restroom or changing facility for use by
32 the other sex;

33 (4) Allows an individual of one sex to use a restroom or changing facil-
34 ity designated for the other sex if such restroom or changing facility is the
35 only restroom or changing facility reasonably available at the time of the
36 individual's use of the facility;

37 (5) Allows an individual employed to clean, maintain, or inspect a re-
38 stroom or changing facility, while such individual is actively engaged in
39 the activity for which the individual has been employed;

40 (6) Allows an individual to enter a restroom or changing facility to
41 render medical assistance;

42 (7) Allows a law enforcement official engaged in law enforcement activ-
43 ities or supervising any arrestee, detainee, or inmate in a custodial set-
44 ting to enter a restroom or changing facility;

45 (8) Allows an individual to enter a restroom or changing facility to ac-
46 company and render assistance to a person who is in need of assistance when
47 the person rendering assistance is:

1 (a) A family member or a legal guardian; or

2 (b) The designee of the person in need of assistance and the designee is
3 not a member of the designated sex for the single-sex restroom or chang-
4 ing facility.

5 (9) Allows a minor child who is in need of assistance to accompany a fam-
6 ily member, a legal guardian, or other designee into a restroom or changing
7 facility, provided that the family member, legal guardian, or other designee
8 is a member of the designated sex for the single-sex restroom or changing fa-
9 cility;

10 (10) Allows coaching staff and personnel during athletic events to ac-
11 cess a restroom or changing facility; or

12 (11) Allows access to a restroom or changing facility during an ongoing
13 natural disaster or emergency, or when necessary to prevent a serious threat
14 to good order or public safety.

15 6-4005. REASONABLE ACCOMMODATIONS. Nothing in this chapter shall be
16 construed to prohibit a place of public accommodation from providing a rea-
17 sonable accommodation to any individual who for any reason is unwilling or
18 unable to use a multi-occupancy restroom or changing facility designated for
19 that individual's sex, provided that a place of public accommodation shall
20 not provide a reasonable accommodation that results in the privacy or safety
21 of another individual being violated by a member of the other sex.

22 6-4006. LIABILITY FOR PLACES OF PUBLIC ACCOMMODATION. (1) A place of
23 public accommodation that breaches its duty of care as described in section
24 6-4003, Idaho Code, shall be liable for all damages attributable to its neg-
25 ligence, including any psychological, emotional, and physical harm.

26 (2) It shall not be a breach of the duty provided in section 6-4003,
27 Idaho Code, if the privacy or safety of an individual was violated because
28 such individual entered a restroom or changing facility designated for use
29 by the other sex.

30 (3) Any civil action arising under this chapter must be commenced
31 within two (2) years after the cause of action has occurred.

32 (4) Nothing in this chapter limits other remedies at law or equity
33 available to the plaintiff.

34 6-4007. PREEMPTION. This chapter preempts any law, regulation, pol-
35 icy, or decree enacted or adopted by any government entity within the state
36 that purports to permit or require places of public accommodation to permit
37 individuals to use restrooms and changing facilities designated for use by
38 the other sex.

39 6-4008. LIMITATIONS. (1) The provisions of this chapter shall not ap-
40 ply to any covered entity as that term is defined in section 67-9801, Idaho
41 Code.

42 (2) The provisions of this chapter shall not apply to any public school
43 as that term is defined in section 33-6702, Idaho Code.

44 (3) The provisions of this chapter shall not apply to any government en-
45 tity as that term is defined in section 67-4802, Idaho Code.

1 SECTION 3. SEVERABILITY. The provisions of this act are hereby declared
2 to be severable and if any provision of this act or the application of such
3 provision to any person or circumstance is declared invalid for any reason,
4 such declaration shall not affect the validity of the remaining portions of
5 this act.

6 SECTION 4. An emergency existing therefor, which emergency is hereby
7 declared to exist, this act shall be in full force and effect on and after
8 July 1, 2026.